

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201601101	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/10/2016 9:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/10/2017	Precinct: 75		
Date/Time CV Reported Wed, 02/10/2016 10:01 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/10/2016 10:01 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Yuan Newton	4690	948105	075 DET
2. DT3 Rudy Lahens	02065	927364	075 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Rudy Lahens	Abuse: PO Rudy Lahens threatened to damage the property of § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . DT3 Yuan Newton	Abuse: Det. Yuan Newton threatened to damage the property of § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated

Case Summary

On February 10, 2016, § 87(2)(b) filed this complaint via telephone, on behalf of herself and her husband, § 87(2)(b). On February 18, 2016, § 87(2)(b) (See Board Review 34) and § 87(2)(b) (See Board Review 35) appeared at the CCRB. Their statements are summarized below § 87(2)(g).

On February 10, 2016, at approximately 9:20 a.m., § 87(2)(b) and § 87(2)(b) were in their § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) described the apartment as a private, one family home, with a rented basement. She and § 87(2)(b) were in their bedroom talking, when they heard their doorbell ring. § 87(2)(b) went to the door while § 87(2)(b) remained in the bedroom to get dressed.

§ 87(2)(b) looked through the glass windows above the front door and observed two black men dressed in business attire, who were identified by the investigation as Det. Rudy Lahens and Det. Yuan Newton of the 75th Precinct's Detective Squad. § 87(2)(b) walked to the front door while the door was closed and asked, "Who is this?" § 87(2)(b) did not hear if anybody responded to § 87(2)(b) but heard § 87(2)(b) tell her, "It's the police at the door. They have on suits."

One of the detectives said to § 87(2)(b) "Detectives" and then displayed his shield. At this point, § 87(2)(b) walked out of the bedroom and joined § 87(2)(b) at the door. § 87(2)(b) asked, "Who are you, and who are you looking for?" The detectives said, "We're looking for § 87(2)(b)." § 87(2)(b) asked, "Why are you looking for § 87(2)(b)?" The detectives asked, "Are you § 87(2)(b)?" A back-and-forth conversation occurred, during which § 87(2)(b) asked several times why they were looking for § 87(2)(b) and the detectives replied several times that they needed him for questioning. Both officers then said, "Open the door, or we'll take down the door" (**Allegation A**). § 87(2)(b) heard them say, "We are the police. Open the door," and "Open the door or we're going to make you open the door" (**within Allegation A**).

At this point, § 87(2)(b) opened the front door while keeping the gate in front of it locked. § 87(2)(b) and § 87(2)(b) saw one of the detectives display a gold shield before putting it away. § 87(2)(b) and § 87(2)(b) asked him for identification and the detective replied, "I'm Officer Newton from the 75th." Another back-and-forth conversation ensued, where § 87(2)(b) continued to ask why they were looking for him, and what was going on, and Det. Newton repeated that he was wanted for questioning.

§ 87(2)(b) stated that at this point, he left the doorway to get dressed but according to § 87(2)(b) while § 87(2)(b) was still present, Det. Newton said, "Just open the door, or we're going to kick in the door." She did not remember if Det. Newton said "...Or push in the door" (**within Allegation A**). § 87(2)(b) did not make this allegation.

§ 87(2)(b) opened the gate and PO Newton attempted to push his way in, but she clarified that no physical contact was made and that neither officer entered the home. § 87(2)(b) stated that when his back was turned, § 87(2)(b) opened the gate and then he heard her say, "What are you doing?" § 87(2)(b) assumed that the officers pushed their way in and entered past the threshold of the front door. However, he did not see them do so because his back was turned. § 87(2)(b) held her hands up and said, "Hold on, hold on, you're not coming into my house. Tell me what you want. And we can solve this. It's not a problem. We're compliant. We just want to know what's going on. We don't know who you are." Again, Det. Newton responded, "We just need § 87(2)(b) to come to the precinct for questioning."

§ 87(2)(b) came back after getting dressed and then stepped out of the front door, where he was handcuffed. The officers transported him to the 75th Precinct stationhouse in an unmarked black Chevy Impala, where he was arrested and charged with § 87(2)(b).

Mediation, Civil and Criminal Histories

- This complaint is not eligible for mediation because of § 87(2)(b) arrest.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three previous complaints with the CCRB. § 87(2)(b)
- § 87(2)(b) was listed as a witness in case number § 87(2)(b). He has filed two previous complaints with the CCRB. § 87(2)(b)
- Det. Yuan Newton has been a member of the NYPD for seven years. He has been involved in one other complaint involving one allegation, which was not substantiated.
- Det. Rudy Lahens has been a member of the NYPD for 15 years and has been involved in six other cases involving ten allegations, none of which have been substantiated. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Det. Rudy Lahens threatened to damage the property of

§ 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: Det. Yuan Newton threatened to damage the property of

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Det. Lahens was assigned several i-cards, one of which was for § 87(2)(b) a resident of § 87(2)(b) in Brooklyn. The i-card was in reference to a complaint of § 87(2)(b) made by § 87(2)(b) landlord that § 87(2)(b) had allegedly chased him in a vehicle for several blocks before threatening physical assault. Det. Lahens and Det. Newton arrived at the residence together, which they described as a private home with a main entrance at the bottom of a flight of stairs.

When Det. Lahens knocked on the locked front gate in front of the main door, § 87(2)(b) opened the door while keeping the gate locked. They identified themselves as detectives from the 75th Precinct and stated that they were looking for § 87(2)(b) who eventually appeared, shirtless, at the front door, while it remained ajar. § 87(2)(b) asked them, “What is this about?” and Det. Lahens explained that they did not want to speak to him from behind a closed door, that they do not want anyone to hear about what is going on, and therefore, § 87(2)(b) had to get dressed and go with them to the stationhouse with his ID.

§ 87(2)(b) was compliant and neither Det. Lahens nor Det. Newton indicated that they were going to come into the residence. They denied saying, “Open the door, or we’re going to make you open the door,” or “Open the door, or we’re going to kick in the door.” Det. Lahens said that the door remained slightly open and the gate in front of it remained locked until § 87(2)(b) stepped out, dressed, approximately three minutes later. Det. Lahens § 87(2)(g)

Initially, he stated that the screen door remained closed, but then he said he could not recall if it was open or closed, but assumed it was closed because he could see through it. § 87(2)(b) was handcuffed when he stepped out and transported to the 75th Precinct stationhouse.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date